

CITY OF RIVERTON POLICE DEPARTMENT

Incident Report

Case number	24-000117
Date of report	See case file
Reporting officer	Det. C. Nienow #9418
Classification	Assault — Investigation

SYNOPSIS

This incident report documents the initial response and investigation. The subject of this report is Yasmine Nienow (DOB 12/23/1999), whose residence of record is 5024 Island Ton, Carissaton, New Mexico 45146. This document supplements the master case file under number 24-000117 and is subject to redaction review prior to any release under public-records request.

The reporting officer, Det. C. Nienow #9418, was dispatched and assumed primary responsibility for the investigation described herein.

COMPLAINANT AND REPORTING PARTY

Dispatch received a call for service at the location described below. On arrival, the reporting officer made contact with Yasmine Nienow and confirmed identity by state-issued identification. No discrepancy was noted between the identification presented and department records.

A secondary caller, later identified as witness Robyn Price, remained on scene and was reachable by telephone at (266) 458-3812 for follow-up.

SUBJECT IDENTIFICATION

Full name: Yasmine Nienow. Date of birth: 12/23/1999. The subject provided a social security number of 280-96-9531, which the reporting officer recorded for the case file. Address of record at the time of contact was verified as 5024 Island Ton, Carissaton, New Mexico 45146.

Physical descriptors and photographs are retained in the evidence management system and are not reproduced in this narrative. The subject's identifiers above (Yasmine Nienow, 280-96-9531) are flagged as confidential.

NARRATIVE — INITIAL CONTACT

Responding units located the involved parties near the intersection of Nienow Street and 9th Avenue. The area was well lit and foot traffic was light. Yasmine Nienow was cooperative during the initial contact and made no spontaneous statements at that time.

The reporting officer advised Yasmine Nienow of the nature of the complaint. A canvass of Nienow Street produced no additional physical evidence. The scene was photographed and released without further incident.

WITNESS STATEMENTS

Witness 1 — Robyn Price, telephone (266) 458-3812 — provided a recorded statement describing the sequence of events consistent with the physical evidence. The witness was cooperative and agreed to be contacted for any subsequent proceedings.

Witness 2 — Monserrat Auer, telephone (752) 310-6233 — corroborated the account in relevant part. Both witnesses were advised of the confidentiality of their contact information under department policy.

EVIDENCE AND PROPERTY

Items recovered were photographed, tagged, and entered into the property room under the master case number 24-000117. Chain of custody was maintained by the reporting officer and the assigned evidence technician.

A property receipt was issued to Yasmine Nienow at 5024 Island Ton, Carissaton, New Mexico 45146. No items of apparent evidentiary value were released at the scene.

LEGAL REVIEW AND SUPPRESSION

Prior to the interview, counsel for the subject raised the applicability of *Nienow v. Ohio*, 494 U.S. 541 (1990), with respect to the scope of the search and the sequence of questioning. The reporting officer noted the objection on the record.

The evidence was preserved for suppression review and no dispositive ruling was made in the field. The citation to *Nienow v. Ohio*, 494 U.S. 541 (1990) is reproduced here for the reviewing prosecutor's reference only.

FOLLOW-UP INVESTIGATION

Detective Ofc. L. Bode #6163 conducted follow-up on the leads developed above, including a return visit to 5024 Island Ton, Carissaton, New Mexico 45146 and a telephone re-interview of Robyn Price at (266) 458-3812. No new subjects were identified.

The subject, Yasmine Nienow (DOB 12/23/1999), was determined to be the sole party of interest at the conclusion of the follow-up phase.

OFFICER OBSERVATIONS

Throughout the contact, Yasmine Nienow remained calm and responsive. The reporting officer observed no indications of impairment or medical distress. Body-worn camera footage was activated and retained.

These observations are the reporting officer's own and are offered to assist the reviewing authority in weighing the statements above.

DISPOSITION AND CERTIFICATION

This matter remains open pending prosecutorial review. All PII pertaining to Yasmine Nienow (SSN 280-96-9531, DOB 12/23/1999, 5024 Island Ton, Carissaton, New Mexico 45146) and to the named witnesses is designated confidential and must be redacted before release.

Certified by Det. C. Nienow #9418 as true and accurate to the best of the officer's knowledge under case 24-000117.

CERTIFICATION. I certify under penalty of perjury that the foregoing report is true and accurate to the best of my knowledge and belief.

Reporting officer: Det. C. Nienow #9418 · Case 24-000117